

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUCO007971: VARSITY PARK ESTATES HOMEOWNERS ASSOCIATION vs
JAMES D ANGLIN, et al.**

07/07/2026 in Department 42

Motion for Attorney Fees/Costs on Appeal

Motion: Plaintiff Varsity Park Estates Homeowners Association's Motion for Attorneys' Fees on Appeal (*opposed*)

Tentative Ruling:

The Court intends to rule as follows:

Both parties' unopposed requests for judicial notice are GRANTED as requested, pursuant to Evidence Code § 452, subds. (c), (d), and (h).

Plaintiff Varsity Park Estates Homeowners Association's ("Association") Motion for Attorneys' Fees on Appeal is GRANTED. The Association is the prevailing party pursuant to Civil Code §§ 1717(a) and 5975(c) and reasonably incurred a total of \$36,516.40 in attorney's fees and costs in connection with the appeal and this motion. The Association is awarded \$36,516.40 in attorney's fees and costs against Defendants James Anglin and Kimberly Crane.

Background:

In summary, Plaintiff filed this action on April 19, 2023, to enforce the community's Covenants, Conditions, and Restrictions ("CC&Rs"), which prohibited Defendants from parking a recreational vehicle within the community. Following a three-day court trial held from November 18 through November 20, 2024, Plaintiff prevailed. The Court subsequently entered an Amended Judgment on March 21, 2025, awarding Plaintiff \$61,720 in attorney's fees.

Defendants thereafter appealed. The Court of Appeal affirmed the judgment in its entirety, awarded costs on appeal to Respondent (Plaintiff), and the remittitur issued on April 23, 2026. The California Supreme Court denied Defendants' petition for review on April 22, 2026. This motion follows and is brought pursuant to Civil Code § 5975, Code of Civil Procedure § 1717, and California Rules of Court, rules 8.278 and 3.1702.

Plaintiff, as the prevailing party, requests a total of \$36,670.40, which is broken down as follows:

- \$30,060.50 for 78.1 hours incurred for legal work on appeal;
- \$834.90 in fees [separately filed costs memo]; and
- \$5,775 for 15 hours at \$385 per hour for the instant motion/reply/hearing.

The amounts requested are supported by the request for judicial notice, declaration of counsel, and 13 exhibits, including invoices (Ex. 12).

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Discussion:

As a preliminary matter Plaintiff is clearly entitled to recover attorney fees and costs on appeal under Civil Code §§ 1717(a) and 5975. The underlying CC&Rs qualify as a contract, and ¶ 17.4.5 is the attorneys fee provision. The Court of Appeal awarded costs, the remittitur was issued on April 23, 2026, and this motion was filed on June 2, 2026. A costs memo for \$834.90 was filed on June 2, 2026, and there was no objection or opposition filed.

A. Lodestar standard

Therefore, the only issue before the Court is the amount of attorney fees. The Court has broad discretion in determining the amount of the Association's reasonable attorney's fees. (*PCLM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "Under the lodestar method, attorney fees are calculated by first multiplying the number of hours reasonably expended on the litigation by a reasonable hourly rate of compensation." (*Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1259.) A reasonable hourly rate is that prevailing in the community for comparable or similar professional legal services. (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 155-156.)

As articulated by the California Supreme Court:

Under *Serrano III*, the lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. [Citation]. The purpose of such adjustment is to fix a fee at the fair market value for the particular action.

(*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; see also *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

"[T]he parties seeking fees and costs . . . 'bear[] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' [Citation]. To that end, the court may require defendants to produce records sufficient to provide "a proper basis for determining how much time was spent on particular claims."" [Citation]. The court also may properly reduce compensation on account of any failure to maintain appropriate time records." (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1020.)

B. Application

The hourly rates charged by Plaintiff's counsel are reasonable if they are within the prevailing rates for similar work in the local legal community. (*Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004.) The determination of the reasonableness of the rates is within the sound discretion of the Court:

It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court....[Citations.] The value of legal services performed in a case is a matter in which the trial court has its own expertise. [Citation.] The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. [Citations.] The trial court makes its determination after consideration of a number of factors,

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including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.

(Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623-624.)

The Court finds that the hourly rates claimed by Plaintiff's counsel, \$345 per hour, increasing to \$385 per hour beginning in February 2025, are reasonable on their face in light of counsel's experience and are consistent with the rates previously awarded to Plaintiff's counsel in connection with the motion for attorney's fees arising from the trial proceedings.

The Court has carefully reviewed the highlighted billing entries submitted in support of the motion. With the exception of the \$154 in charges that Plaintiff acknowledges were inadvertently included and has conceded should be excluded, the Court finds no improper, excessive, or inappropriate billing. Contrary to Defendants' assertions, the challenged entries reflect work reasonably and necessarily performed in connection with the successful appeal.

Excluding the conceded charges, Plaintiff seeks compensation for 78.1 hours of appellate work, together with 15 hours reasonably anticipated for preparation of and appearance on the present motion. The record reflects that 14.6 of those anticipated hours had already been incurred before the hearing, exclusive of time spent preparing for and attending the hearing itself. The Court finds no indication that counsel inflated the time expended. Nor have Defendants identified any specific billing entry that warrants reduction or exclusion. Defendants' objections are generalized, unsupported, and unpersuasive.

Accordingly, the Court declines to reduce either the hourly rates or the hours claimed. Plaintiff is entitled to recover the full amount of attorney's fees requested, less the conceded \$154 reduction, including compensation for the additional 0.4 hours reasonably anticipated for the hearing, which the Court finds were in fact incurred and, if anything, exceeded the 15 hours originally estimated at the time the motion was filed.

The Court likewise finds no basis to reduce the costs requested. Defendants have failed to identify any cost that was improperly incurred or unrecoverable. The claimed costs were reasonably incurred, paid, and remain undisputed as to their nature. Accordingly, Plaintiff is entitled to recover the full amount of recoverable costs requested.

Based on the above, the Court GRANTS attorneys' fees and costs in the amount of \$36,516.40.